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| CASE #      | CASE NAME                   | HEARING NAME                                          |
|-------------|-----------------------------|-------------------------------------------------------|
| CVRI2405514 | REESE VS GENERAL MOTORS LLC | MOTION TO BE RELIEVED AS COUNSEL FOR MICHELLE M REESE |

**Tentative Ruling:** Deny.

“The attorney in an action or special proceeding may be changed at any time before or after judgment of final determination, as follows: (1) Upon the consent of both client and attorney, filed with the clerk, or entered upon the minutes; (2) Upon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284.) If the attorney is the moving party, the right to withdraw is conditioned on proper notice and a showing of why a court order is required – that is, why substitution by mutual consent cannot be obtained. (See Cal. Rules of Court, rule 3.1362.) “The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court.” (*Manfredi & Levine v. Superior Court* (1998) 66 Cal.App.4th 1128, 1133; see also *Lempert v. Superior Court* (2003) 112 Cal.App.4th 1161, 1173 [“The determination whether to grant or deny an attorney’s motion to withdraw as counsel of record lies within the sound discretion of the trial court, having in mind whether such withdrawal might work an injustice in the handling of the case”].) The court’s discretion in this area should be “exercised reasonably.” (*Mandell v. Superior Court* (1977) 67 Cal.App.3d 1, 4.) An attorney should not be permitted to withdraw if injustice to third party results. (*Linn v. Superior Court in and for Los Angeles County* (1928) 79 Cal.App. 721.)

**I. Merits**

**a. Timeliness**

GM contends the motion is untimely because it was filed on June 12, 2026 to be heard on July 7, 2026. (Code Civ. Proc., § 1005, subd. (b) [all moving and supporting papers shall be served and filed at least 16 court days before the hearing plus applicable time extension under section 1013].) Accordingly, SPC should have filed its motion on June 9, 2026, not June 12, 2026. (*Ibid.*)

**b. California Rules of Court, rule 3.1362(d) – Defective Notice**

Rule 3.1362 governs the procedure for an attorney to be relieved as counsel, specifying required forms, declarations, service, and court orders.

SLP attests it served Plaintiff by mail at her last known address. (Chae Decl., ¶3a(1).) Rule 3.1362(d) requires that if service was to the last known address, the declaration must state the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before filing the motion. (Cal. Rules of Court, rule 3.1362(d)(1)(B).) SLP checked the box attesting that it confirmed within the past 30 days that the address is current, “by mail, return receipt requested.” (*Id.* at ¶3b(1)(a).) However, SLP also checks the box indicating it has been unable to

confirm that the address is current or to locate a more current address for Plaintiff after mailing the motion papers to the client's last known address, return receipt requested. (*Id.* at ¶3b(2)(a).) Thus, SLP fails to comply with Rule 3.1362(d)(1)(B) as the declaration does not reflect SLP made reasonable efforts to locate a more current address within 30 days before the filing of the motion to be relieved. "As used in this rule, 'current' means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current." (Cal. Rules of Court, rule 3.1362.)

Alternatively, SLP attests copies of the motion papers, including Chae's declaration, was sent to Plaintiff's email address at mreese0983@gmail.com. (*Id.* at ¶7.) This still fails to comply with Rule 3.1362(d)(2), which requires a declaration stating that the electronic service address is the client's current electronic service address.

Based on the foregoing, SLP's notice to Plaintiff was defective. Accordingly, the Court denies the motion for defective notice under Rule 3.1362.

### **c. Good Cause**

Rule 3.1362(c) provides: "The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)."

Here, Chae attests to "a complete breakdown of the attorney-client relationship between SLP" and Plaintiff. (Chae Decl., ¶2.) Since February 25, 2026, SLP has had no success in communicating with Plaintiff despite SLP's numerous attempts by telephone, email, and letters. (*Ibid.*) Plaintiff was served by mail, return receipt requested, of the instant motion. (*Id.* at ¶3.)

Contrary to GM's argument that Chae failed to establish good cause, having a client who has been radio silent for 4 months is good cause. A "lawyer may withdraw from representing a client if...(4) the client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively..." (Cal. Rules of Court, rule 1.16(b)(4).) A complete breakdown in communication by Plaintiff renders it unreasonably difficult for Chae to carry out representation effectively. Thus, good cause is established.

### **d. Prejudice**

Although GM argues it will experience severe prejudice because a continuance of the trial would allow Plaintiff more time to develop her case, this argument is meritless given the same time is afforded GM. This also undermines GM's claim that the time it has already invested in trial preparation would be squandered with a continuance of the trial.